

Court No. - 29

Case :- WRIT - C No. - 2218 of 2021

Petitioner :- Ore Prasad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Satendra Tirpathi, Sumant Kumar Tiwari

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

Heard Shri Sumant Kumar Tiwari for the petitioner, learned Standing Counsel for the State - respondent no. 1 and Shri Narendra Kumar Tiwari for respondent nos. 2 to 4.

The petitioner is running an Atta Chakki (flour mill) having a load of 10 H.P. It is submitted by the learned counsel for the petitioner that despite repeated requests being made to the Department, electricity bills are not being provided to him, although he continued to deposit the electricity dues as per his own wisdom and self reading. On 24.08.2019, an inspection was carried out by the Department on the petitioner's house and the electricity supply of the petitioner's house was disconnected. Thereafter, on 27.02.2020, a notice was issued against the petitioner showing outstanding amount to the tune of Rs. 5,74,883/-. The petitioner filed an objection on 02.03.2020. Thereafter, the respondents directed the petitioner to deposit Rs. 50,000/- as one time settlement with an assurance that final bill will be issued to him, which the petitioner deposited on 02.09.2020 and made an application dated 15.09.2020 requesting to finalize the electricity bills/dues and to restore his electricity connection.

Learned counsel for the respondents submits that final bill has been issued to the petitioner against which the petitioner has statutory, alternative and efficacious remedy under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

Be that as it may, this writ petition is disposed of with the direction that in case the petitioner files an objection within two weeks from today, along with a copy of this order, the same shall be considered and decided by the competent authority by a reasoned and speaking order, as expeditiously as possible, preferably, within six weeks thereafter, in accordance with law.

Order Date :- 2.2.2021

Amit Mishra